

an allocation.

Subject to resolution of the penalty allocation, the Court would find that the agreement is sufficiently fair, reasonable, and adequate, to justify preliminary approval, and grant the motion. **Counsel are directed to appear (by zoom is sufficient) in order to address a schedule for resolving the issue.**

If the motion is granted, counsel will be directed to prepare an order reflecting this tentative ruling, the other findings in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

6. 9:00 AM CASE NUMBER: C24-00016
CASE NAME: NICHON ROBERSON VS. BL HOMES, INC
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL FOR PLTF ROSALYN ENFIELD**
FILED BY:

TENTATIVE RULING:

The motion is **granted**. Counsel is directed to serve the order relieving counsel in compliance with CRC 3.1362(d). Counsel is not formally relieved until the order is served on the client and proof of service is filed with the court.

7. 9:00 AM CASE NUMBER: C24-00016
CASE NAME: NICHON ROBERSON VS. BL HOMES, INC
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL FOR PETER ROBERSON**
FILED BY:

TENTATIVE RULING:

The motion is **granted**. Counsel is directed to serve the order relieving counsel in compliance with CRC 3.1362(d). Counsel is not formally relieved until the order is served on the client and proof of service is filed with the court.

8. 9:00 AM CASE NUMBER: C24-00492
CASE NAME: THELMA JACKSON VS. JOHN PAULDING
***HEARING ON MOTION IN RE: CONFIRM AND/OR IMPOSE LIEN ON SHARE OF JOHN AND TIMOTHY PAULDING IN PROCEEDS OF SALE (CONTINUED FROM: 12/11/2025)**
FILED BY:

TENTATIVE RULING:

See line 9.

9. 9:00 AM CASE NUMBER: C24-00492
CASE NAME: THELMA JACKSON VS. JOHN PAULDING
***HEARING ON MOTION IN RE: CONFIRM REFEREE REPORT AND TO ALLOCATE SALE PROCEEDS**

(CONTINUED FROM: 12/11/2025)

FILED BY:

TENTATIVE RULING:

Before the Court is the motion by Partition Referee David W. Martin ("Referee") for an order approving the Referee's Report and allocating and distributing the proceeds of the sale of 5648 Burlingame Avenue in Richmond, Contra Costa County, California.

Referee David W. Martin has provided the Court with an updated and more detailed breakdown of costs and expenses of the allocation of the proceeds.

The Court has considered the statement of offset submitted by Defendant John Paulding. The Court will not grant any of the requested offset amounts. Assuming that they were otherwise proper, John Paulding failed to produce sufficient evidence supporting the amount or actual payment of the requested offset line items.

Defendant Timothy Paulding has submitted written objections about the allocation of the attorney's fees owed to Attorney Endy Ukoha-Ajike. This issue was already ruled on by this court at the December 11, 2025, hearing. Defendant Timothy Paulding has failed to produce sufficient evidence in support of his position.

The Court approves Referee David W. Martin updated proposed order for allocation of the proceeds for the sale of 5648 Burlingame Avenue in Richmond, Contra Costa County, California.

10. 9:00 AM CASE NUMBER: C24-03556

CASE NAME: KILROY REALTY 303, LLC VS. LEROY QUAN

HEARING IN RE: APPLICATION FOR RIGHT TO ATTACH ORDER; ORDER FOR ISSUANCE OF WRIT AFTER HEARING

FILED BY: KILROY REALTY 303, LLC

TENTATIVE RULING:

Before the Court are two applications by plaintiff, Kilroy Realty 303, LLC, to attach property. One application seeks property owned by defendant, Sterling M. Enterprises, Inc, DBA Lee's Deli. The other application seeks to attach property owned by individual defendant, Leroy M. Quan.

Subject to the exemptions listed below, and subject to plaintiff posting an undertaking of \$1,133,334.66, the applications are **granted**.

Background

This case arises from a lease agreement dated December 6, 1996. (Declaration of Megan Pusateri in Support of Application, hereinafter "Pusateri Decl.," Ex. 1.) Various amendments were executed and the individual defendant here, Leroy M. Quan, guaranteed performance under a separate agreement. (Pusateri Decl., Ex. 2-8.) Plaintiff landlord filed this legal action approximately one year ago, seeking damages against Sterling M. Enterprises, Inc. for breach of the lease, and against Mr. Quan for breach of the guaranty.

In August 2025, plaintiff filed two applications for right to attach order and order for writ of attachment. Plaintiff seeks to attach property in the amount of \$1,189,730, which includes estimated costs of \$1,000 and attorney fees of \$30,000. (Pusateri Decl., ¶¶14-18.)